

Never-Filed Corrected Petition, Essential-Materials Index, and Service Certifications

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-DEFICIENCY-NEVER-FILED

Document code: B03

Hypothetical date: 2026-04-01

Timely corrected package

The package retains the initial draft's materially conforming caption and adds the essential materials, respondent-service certificate, and trial-judge-copy certification in an early same-day correction on April 1, before the 5:00 p.m. production deadline and within the clerk's stated deadline.

The correction does not alter the caption because the clerk identified no caption defect. It supplies exactly the three noticed items: essential materials, service on Calder, and certification of delivery to the trial judge. Timely correction leaves the petition submitted for judicial consideration; it does not establish mandamus entitlement, invite an answer, authorize argument, or create a stay or standstill.

Relief requested

Cinder Lake requests vacatur of categorical waiver and complete production and remand for item-specific privilege review.

The prayer identifies the categorical-waiver and complete-production provisions and requests remand for individual review. It separates any broader protection from related discovery so partial relief is possible. A technically complete request remains only a party's position; the corrected wording does not establish the clear and indisputable right required for mandamus. The petition remains pending unless and until the court acts.

Issues presented

The corrected petition identifies Rule 502(a), communications versus facts, seven-day production, and the limits of extraordinary relief.

The corrected issues track the required legal decisions: whether protected information was actually disclosed, whether postjudgment review can preserve confidentiality, and what discovery remains permissible. Stating them allows the court and Calder to understand the proceeding. It does not resolve the factual comparison or satisfy Cheney without supporting material. Calder would receive notice of those questions only through a valid response order, not through technical acceptance alone.

Relevant chronology

The package lists the August 21 letter, January 9 order, February exchanges and lodgment, March 25 ruling, reconsideration, and April 1 stay denial.

Dates are tied to identified documents rather than unsupported narrative. The chronology distinguishes the August public letter, prospective January order, offline exchanges, February 26 lodgment, March 25 command, and failed preservation efforts. That sequence explains urgency while preserving the distinction between offline exchange, district filing, and the present appellate submission.

Response-letter description

The petition states that the public letter announced review and remediation without quoting or paraphrasing counsel's communications.

The petition quotes the public statement about counsel's review and remedial measures and represents that no advice or employee communication was disclosed. The complete letter included with the essential materials lets the court test that assertion against the words Calder identifies as the waiver event. The correction thus supplies context absent from the initial draft.

Rule 502(a) argument

A shared subject does not substitute for intentional disclosure of privileged information before fairness and same-subject analysis.

Rule 502(a) cannot begin with subject overlap alone; the corrected petition identifies intentional disclosure of protected information as the necessary first inquiry. It then addresses relatedness and fairness only conditionally. That structured argument expands the initial draft, but technical compliance still reflects the materials submitted rather than a judicial conclusion about waiver.

Upjohn boundary

Original facts and business records remain discoverable even if protected communications and attorney work product are withheld.

The corrected filing concedes that Calder may obtain billing facts, records, employee observations, and nonprivileged remedial information from original sources. It seeks protection for confidential communications and counsel's work product pending item-specific review. This limitation prevents the correction from converting privilege into ownership of the underlying investigation subject. That concession confines the proposed protection and preserves the district court's authority over independently sourced evidence.

Cheney element one

The April 1 compelled disclosure would occur before ordinary final review and could not later be undone.

The petition identifies why the command threatens the asserted right before final judgment. Ashe already holds protected memorandum-and-log review copies, but Calder would first receive the twenty underlying communications, drafts, work product, and attachments as compelled production on April 1. Later reversal could not erase that new knowledge; the corrected package now supplies the order and preservation record.

Cheney element two

The petition argues that the absence of any disclosed protected communication makes the categorical ruling clearly erroneous on this record.

The clear-right section compares the letter's public words to the asserted protected categories instead of relying on a conclusory label. It argues that review and remediation disclose events, not communications. Whether the panel agrees remains a merits matter; the filing's procedural significance is that the proposition is now connected to the materials the court needs to assess it.

Cheney element three

Narrow relief follows failed preservation efforts and leaves district discovery management intact.

Appropriateness is supported by reconsideration, a district stay request, and a remedy that leaves ordinary factual discovery intact. Those details allow judicial evaluation of discretion and institutional limits. They do not create an exhaustion rule or predetermine issuance. The correction supplies a reviewable discretionary argument without manufacturing an automatic exhaustion or issuance rule.

Fluor limitation

The corrected petition labels Fluor unpublished and nonprecedential and invokes only its close seven-day-production analogy.

Fluor is described as unpublished and nonprecedential and is used only for its similar no-disclosed-communication and seven-day-production facts. The corrected petition relies on Cheney, Mohawk, Rule 502, and published circuit law for governing principles. That treatment prevents the petition from overstating persuasive authority. Citation treatment does not alter the three objective omissions identified in the clerk's notice.

Essential-materials index

The index identifies the March 25 order, reconsideration filings and denial, stay motion and denial, public response letter, and public protected-material surrogates.

The index lists each item by title and date and explains why it is essential to the questions presented. It includes the challenged order, reconsideration and stay record, public response letter, and protected-material surrogates. A reader can verify completeness without receiving sealed content through an index entry or assuming that every listed item proves the petition's position.

Challenged order extract

The exact categorical-waiver and April 1 production language is included as essential material.

The March 25 language establishes both the categorical legal premise and the April 1 production requirement. Providing that text cures the initial draft's basic record omission and fixes the proposed writ's target. The extract includes no appellate characterization or authority unavailable on its date. The quoted language permits precise target identification while leaving its legal validity for the court.

Preservation orders

The March 30 reconsideration denial and April 1 district-stay denial are included and dated.

The March 30 and April 1 denials show that Cinder Lake presented its objection and could not obtain preservation below. Their inclusion supports the chronology and enables a Cheney inquiry. Neither denial proves appellate entitlement. No appellate stay or standstill has been entered on this docket, and the district production command remains effective.

Public response letter

The decisive public letter is included so the court can evaluate what was actually disclosed.

The complete public letter appears because its words are the alleged disclosure. It remains nonprivileged and readable; no redaction is needed merely because it refers to outside counsel. Supplying it permits the court to evaluate actual content rather than accept the petitioner's characterization. Because the letter is public, its inclusion cures the evidentiary omission without requiring sealed treatment.

Public protected-material surrogates

Equal-page redacted copies preserve categories and chronology without exposing communications.

The public surrogates identify protected document families, dates, and broad categories and preserve equal-page alignment. They avoid exposing interview substance or item-level log descriptions while showing what Cinder Lake claims. A later court could require authorized sealed review, but technical correction does not itself grant access or decide the claim. The surrogates complete the public package while reserving item-level protected descriptions for separately authorized review.

Respondent service

The corrected package records completed service on Calder through the designated filing channel on April 1.

The service certificate identifies Calder, the designated channel, and April 1 completion. That record cures the initial draft's missing respondent service. It does not rely on district CM/ECF for sealed-source delivery and applies only to this corrected petition. Completed service satisfies one item in the clerk's notice but does not itself establish delivery to the trial judge or acceptance.

Trial-judge copy certification

Counsel certifies delivery of the corrected petition and essential materials to the trial judge; the package is technically cured and remains submitted, with no answer due absent an order.

Counsel separately certifies that the corrected petition and essential materials were provided to the trial judge on April 1. Together with the index and Calder service, this satisfies every item named in the clerk's notice before the deadline. The petition remains submitted without a stay or standstill: no answer is due, no argument is set, and no disposition has been entered.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.